

CONTRACT AGREEMENT 2019-2020

The agreement is made between:

PARTY A: FUSION MAIA DA NANG		PARTY B: 365 TRAVEL AND INVESTMENT CO., LTD	
Address:	Vo Nguyen Giap Street, Khue My Ward, Ngu Hanh Son District, Da Nang City, Vietnam	Address:	No.108, G2 Building, Thanh Cong Street, Ba Dinh District, Ha Noi, Vietnam
Telephone:	84 236 3967 999	Telephone:	+84 24 3835 4899
Fax:	84 236 3967 888	Fax:	+84 24 3773 9100
Email:	reservation-dn@fusion-resorts.com	Email:	holy.hoang@365travel.asia
Representative:	Mr. RAMON IMPER	Representative:	Ms. HOANG THI MAI HUONG
Title:	General Manager	Title:	Contracting Director

Validity: 01 November 2019 – 31 October 2020
 Market: All (excluding Korea)
 Currency: VND
 Rate basis: per room per night

Room type	Room Rate	Extra Bed	Meal Plan
Pool Villa (01 bedroom)	VND 10,293,000	VND 2,700,000	BBS
Spa Villa (02 bedrooms)	VND 18,894,000		
Grand Beach Villa (03 Bedrooms)	VND 28,458,500		

Conditions:

- * Above contracted rates are in Vietnam Dong (VND) and inclusive of service charge (5%) and applicable value added tax (10%).
- * Rates are non-commissionable and based on per room per night.
- * Rates included breakfast and spa treatments (BBS) up to 2 people for pool villa, 4 people for spa villa and 6 people for grand beach villa.
- * GIT rates (>= 10 rooms) are available upon request.
- * Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
- * This contract is subject to terms & conditions, which are an integral part of the contract.
- * Booking must mention code of market or tour operator's name for reference.
- * Wholesaler, tour operators, travel agents have to use selected hotel pictures to design or list resorts on brochure, flyer or other PR material as authorized by resort.
- * **Hotel reserves/affirms the obligation of the contract partner to charge a MINIMUM MARK-UP 5% (FIVE) on this contracted rate to Tour operator, international wholesaler and others.**
- * **Partner is requested to make the ALL SPA INCLUSIVE offer very clear in their brochure as well within their sales materials.**

New Year Eve & Lunar New Year

- * Bookings received for stay on December 31, 2019 will be subject to a minimum 3 nights stay & compulsory Gala dinner on 31 Dec.
- * Bookings received for stay on January 25, 26, 27 & 28, 2020 will be subject to a minimum 3 nights stay.

Special offers:

- * Stay 5 Nights, Pay 4 and based on contracted rate, non-combinable with other promotions or special rates.
- * Early Bird 30 Days: Bookings reserved 30 days in advance of arrival will receive a 5% discount on room and breakfast rates. (NOT COMBINABLE)
- * Early Bird 45 Days: Bookings reserved 45 days in advance of arrival will receive a 8% discount on room and breakfast rates. (NOT COMBINABLE)
- * Early Bird 60 Days: Bookings reserved 60 days in advance of arrival will receive a 10% discount on room and breakfast rates. (NOT COMBINABLE)
- * Early Bird 90 Days: Bookings reserved 90 days in advance of arrival will receive a 15% discount on room and breakfast rates. (NOT COMBINABLE)

The special offer must be exposed and listed on catalogue/brochure/flyer of tour operators and copy to resort for reference.

Stay pay and early bird offer can be applied to room rate, extra bed, breakfast, half board and full board, but not applied to gala dinner rate.

Any amendments such as changes on guests' names, arrival date, length of stay for the bookings with special offers, the promotion will be reconsidered to be applicable from last updated date.

Black-out date for all promotion/offers (Peak season):

23 December 2019 - 05 January 2020 (Christmas-New Year)
 25 January 2020 - 28 January 2020 (Tet holiday)
 11 April 2020 – 13 April 2020 (Easter)
 29 April 2020 - 04 May 2020 (Labor International Day)
 29 August 2020 - 01 September 2020 (VN National Day)

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Added value benefits:

- * Villa with **PRIVATE POOL**
- * Daily breakfast **ANY TIME AND ANY PLACE**
- * **ALL SPA INCLUSIVE, Guarantee 2 spa treatments per person per day, daily Yoga, Fitness, Taichi & Meditation.**
- * Free Wi-fi internet access
- * Choice of welcome amenities (1. Homemade cookies 2. Homemade chocolates 3. Healthy treat 4. Fresh fruit). Please notify your choice at time of booking.
- * Spa theme daily turndown message
- * Complimentary shuttle bus to Hoi An as schedule
- * Fusion Café in Hoi An (additional venue for breakfast, complimentary bicycles)

Meal rates per person	From 12 years old +	From 6 - under 12 years old
Half Board	VND 1,100,000	VND 550,000
Full Board	VND 2,000,000	VND 1,000,000
Compulsory Gala dinner 31 Dec (NY's Eve program including dinner and free flow drinks)	VND 3,525,000	VND 1,762,000

Meal Plan:

- * Half Board is one meal daily:
 - 1 x lunch OR dinner daily (3 course with starter, main & dessert)
 - Guests can select from a la carte menu at Five, Fresh Restaurant or In Room Dining or the standard buffet (excludes buffet experience upgrade, private dining and fresh whole lobster 500g, deluxe seafood platter)
- * Full Board is two meal daily:
 - 1 x lunch (2 course with start & main OR main & dessert) PLUS 1 x dinner (3 course with starter, main & dessert)
 - Guests can select from a la carte menu at Five, Fresh Restaurant or In Room Dining or the standard buffet (excludes buffet experience upgrade, private dining and fresh whole lobster 500g, deluxe seafood platter)

Distribution of Contracts:

Contract Rates are valid for bundled, packaged or brochure international leisure business only. Contract Rates are only valid for bona fide Tour Operators.

Contract Rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from the hotel.

Distribution of Contracts on the Internet:

Contract Rates are valid for bundled, packaged or brochured international leisure business only and cannot be offered in other markets that are specified.

The Contract Rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution or retailing via the Internet.

Children Policy:

Baby cots are complimentary upon request, subject to availability.
One extra bed per room is maximum allowed.

Children under 6 years old

Maximum two (2) children per room under 6 years old is complimentary when sharing parents room and utilizing existing bed, including breakfast and gala dinner on 31 Dec.
Other food and beverage charged as consumption at standard rates.

Children 6 – under 12 years old

Meal price is 50% charge of adult price if half or full board, or 100% as per children menu price.
Breakfast is charged at VND 450,000 nett if no extra bed required.
Extra bed is charged at VND 1,600,000 nett including breakfast.

Children 12 years – under 16 years old

Meal price is at standard rates.
Extra bed is compulsory at VND 1,600,000 nett including breakfast.
Extra bed is charged at VND 2,700,000 nett including breakfast and spa treatments (share treatment room with parent).

Children 16 years and older

Meal price is at standard rates.
Extra bed is compulsory at VND 2,700,000 nett including breakfast and spa treatments

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Bank Account Details:

Bank Name: VIETCOMBANK
Bank address: 153 Ngu Hanh Son Street, Da nang city
Account Name: **Fusion Maia Da Nang resort**
Account Number: **(USD) 00 41 37 10 84 200**
(VND) 00 41 00 10 84 199
Swift Code: **BFTVNVX004**

Cancellation:

The company shall notify the hotel in writing of any cancellation prior to the minimum notice period. In the event of late notification, a cancellation charge will apply:

Standard season: 01 November 2019 - 22 December 2019 & 06 January 2020 – 24 January 2020 & 29 January 2020 – 10 April 2020 & 14 April 2020 – 28 April 2020 & 05 May 2020 - 30 June 2020 & 06 October 2020 - 31 October 2020

High season: 01 July 2020 – 28 August 2020 & 02 September 2020 – 05 October 2020

Peak season: (Black-out-date in the contract)

23 December 2019 - 05 January 2020 (Christmas-New Year)
25 January 2020 - 28 January 2020 (Tet holiday)
11 April 2020 – 13 April 2020 (Easter)
29 April 2020 - 04 May 2020 (Labor International Day)
29 August 2020 - 01 September 2020 (VN National Day)

*** Standard season:**

- If cancelled or modified 14 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 8-13 days prior to arrival date, 50% of the total price of the reservation will be charged.
- If cancelled or modified 07 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

*** High season:**

- If cancelled or modified 21 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 15-20 days prior to arrival date, 50% of the total price of the reservation will be charged.
- If cancelled or modified 14 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

*** Peak season: (Black-out-date in the contract)**

- If cancelled or modified 30 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 22-29 days prior to arrival date, 50% of the total price of the reservation will be charged.
- If cancelled or modified 21 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

Deposit/Payment:

*** Standard season:**

- A 50% deposit is required prior to 14 days of arrival.
- The rest will be paid 08 days before arrival.

*** High season**

- A 50% deposit is required prior to 21 days of arrival.
- The rest will be paid 15 days before arrival.

*** Peak season (Black-out-date in the contract)**

- A 50% deposit is required prior to 30 days of arrival.
- The rest will be paid 15 days before arrival.

Once credit had been approved, the company is required to settle the account due to the hotel within 15 days of the invoice date. Should the company fail to settle the accounts within the said credit period, the hotel reserves the right to withdraw the credit facility.

The hotel also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled.

Invoice unpaid after the credit period will attract interest at 1.5% per month. After 60 days bookings may not be honoured or credit will be recalled and new bookings need to be settled 72 hours prior to arrival.

All bank transfer fee will be paid by TA/TO.

Terms and condition:

1. Rates must be packages and not applicable on internet.
2. FIT rates quoted are applicable only to FIT packages and group tour programs of below 10 rooms. Rates are not applicable for tour group, series groups, incentive, corporate meeting, trade delegation and convention groups.
3. Hotel reserves right to impose additional black-out dates to special offers/value adds with 30 days notice.

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4. Check-out time is 12 pm. From 12 pm to 6 pm, 50% of room rate will be charged and after 6 pm, a full nightly rate will be charged, hotel may offer complimentary late check-out up to 2 pm, however this is subject to availability and at the hotel discretion. Check-in time is 2 pm. From 8 am to 2 pm, 50% of room rate will be charged and before 8 am, a full nightly rate will be charged, hotel may offer complimentary early check-in from 12 pm, however this is subject to availability and at the hotel discretion.
5. Booking amendments: Changes in booking must be notified 14 days in advance during standard season, 21 days during high season and 30 days during peak season and unused room nights are not refundable for early departure. Extension of stay is subject to space and rate availability. If rooms nights can be re-sold these cancellation fees may be waived, subject to hotel discretion.
6. Approved vouchers should accompany individual arrivals unless a prior arrangement has been agreed in writing.
7. All prices are quoted in Vietnam Dong (VND) and should be settled in upon checkout otherwise agreed payment can be made in any of the following forms: Bank Draft, Bank Notes, Money Order or Telegraphic Transfer.
8. All cancellation must be informed in writing and have to be acknowledged by the resort. In the event of a non-arrival on the scheduled date, the company shall be held responsible for payment computed as the equivalent for the full length of stay.
9. All room reservations and rates are subject to availability and confirmation unless allocations have been confirmed.
10. The hotel must be featured as a 5 star category hotel. Text and images need to be approved and proof read by the hotel before publishing. Any hotel visuals presented should be made only the signed and dated approval and vetting from our side. Any default in any clause of this agreement shall result in immediate termination of this agreement.
11. Please note all rates committed to your company are confidential and should not be published at any time or disclosed to a third party for any reason or purpose including online agents.
12. Under no circumstance are the given contracted rates to be passed on/sub-contracted to any dot.com/travel websites/third party company/organization that will result in the sale of our rooms be made at rates lower than those established by our hotel as benchmark rates. The hotel reserves the right to terminate this agreement without any advance notice and proceed to halt all acceptance of bookings from your company if any violations are found to have originated incurred from your end unless a separate contract has been drawn up just for such purpose. Any feature of our hotel on your official company site should be made with no indication/mention of rates/tariff other than those authorized by the hotel indication / mention of rates / tariff other than those authorized by the hotel. Your end is made accordance of rooms allocation from our end to on the mutual agreed of the parties that such allotment shall be used strictly and exclusively by you for purpose of required free-sales by your retail agents and with the brochure feature as stipulated in clause 1. This "retail agent" definition does not include the above third party internet that could booking sites nor any other organizations possibly present our rate lower than our given benchmark sell at that point of time.
13. Leisure rate is defined by our hotel as the rate which will be quoted to any non qualified guest who books our hotel regardless of channel of reservation.
14. The hotel reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfil these terms & conditions.
15. If for any reason beyond the Resort or Company's reasonable control, including but not limited to strikes; labor disputes; acts of God; fires; flood or other emergency conditions; any delay in necessary and essential repairs of the Resort, the Resort or the Company is unable to perform its obligations under this Agreement, such non-performance is excused and such party may terminate this Agreement without further liability or any nature, upon return of the Company's unused deposit. In no event shall Resort or Company be liable for consequential damages of any nature for any reason whatsoever.
16. Tax fluctuations: Should the Government either increase or decrease the percentage of tax collected on room and/or meal rates, or imposes additional taxes and levies, the hotel reserves the right to adjust the contract rates accordingly. In the event of currency devaluation or appreciation of over 10%, we reserve the right to review the contractual rates.
17. Disputes: It is expressly agreed and declared that the proper law of the Agreement is the law of Vietnam and that any disputes, action or other matters arising hereunder shall be determined by Ngu Hanh Son court in Da Nang city, Vietnam in accordance with the laws and procedures of Vietnam under any and all circumstances.

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void.

On behalf of:
FUSION MAIA DA NANG

Accepted by:
365 TRAVEL AND INVESTMENT CO., LTD

Mr. RAMON IMPER
General Manager
Date:

Mr. AKSHAY MOZA
Commercial Director
Date:

Ms. HOANG THI MAI HUONG
Contracting Director
Date: